

Ashok Kumar Tyagi and 4 Others v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 1 February 2023 · Writ-C No. 2557 of 2023 · **Disposed;**
clause 6.5 authority to decide pending bill objections within four weeks.

HEADNOTE

Where a writ seeks only a mandamus to decide objections already served disputing the correctness of electricity bills, and the licensee states that the designated respondent is competent under Clause 6.5 of the Electricity Supply Code, 2005, the petition is disposed of by directing that respondent to decide those objections within four weeks of production of the order and a copy of the objections. The Court does not examine the correctness of the bills.

FACTUAL SUMMARY

Ashok Kumar Tyagi and four others petitioned the Allahabad High Court for a mandamus to respondent no. 4 to decide objections, served on the Electricity Department on 15 October 2022, disputing the correctness of their electricity bills. The petition was adjourned on 25 January 2023 at their counsel's request. On 1 February 2023 counsel for the Department stated that respondent no. 4 was competent to decide that dispute under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending bill objections to be decided by the clause 6.5 authority

HOLDING

Respondent no. 4, stated by the Electricity Department to be competent under Clause 6.5 of the Electricity Supply Code, 2005, is directed to decide the petitioners' objections to the correctness of the electricity bills, served on the Department on 15.10.2022, within four weeks of production of a true attested copy of the order together with a photocopy of the objections. The writ is disposed of on that direction. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided Objections disputing the electricity bills had already been served on 15.10.2022. The Court did not adjudicate them and directed respondent no. 4 to decide them within four weeks of production of the order and a copy of the objections. ¶ 2-3

alternate-remedy-clause-6.5 The Department's statement that respondent no. 4 is competent under Clause 6.5 was accepted, and the writ was disposed of by sending the billing dispute to that authority. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS DISPUTED IN THE OBJECTIONS SERVED ON 15.10.2022 WERE CORRECT.

Left to respondent no. 4 under Clause 6.5; the writ only fixed a four-week period for that decision. ¶ 3